



PAKISTAN MERCHANT SHIPPING (AMENDMENT) ORDINANCE, 2002

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PAKISTAN MERCHANT SHIPPING (AMENDMENT) ORDINANCE, 2002.

ORDINANCE XLVII OF 2002

An

Ordinance

to amend the Pakistan Merchant Shipping Ordinance, 2001

WHEREAS it is expedient to amend the Pakistan Merchant Shipping Ordinance, 2001 (LII of 2001), for the purposes hereinafter appearing;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, Therefore, in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999, read with the Provisional Constitution (Amendment) Order No.9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:-

1. Short title and commencement.-(1) This Ordinance may be called the Pakistan Merchant Shipping (Amendment) Ordinance, 2002.

(2) It shall come into force at once.

2. Insertion of new section 79A, Ordinance No. LII of 2001. In the Pakistan Merchant Shipping Ordinance, 2001 (LII of 2001), after section 79, the following section shall be inserted, namely:-

"79A. Regulation and determination of port charges by Shipping Companies and Shipping Agents etc.-(1) The Federal Government shall regulate and determine port charges and other local charges, other than the charges leviable under the Ports Act, 1908 (XV of 1908), to be levied by the shipping Companies and Shipping Agents in respect of the cargo handled at port.

(2) Notwithstanding anything contained in any other law for the time being in force, the licences to Shipping Companies, Shipping Agents and Non-vessels Operating Carriers and Cargo Consolidations shall only be issued after grant of NOC from the Shipping Rates Advisory Board constituted under sub-section (2) of section 79 or by an authority authorised by the Board.

(3) Only those Shipping Companies and Shipping Agents, Non-vessles Operating Carriers and Cargo Consolidators who are registered with the Ports and Shipping Wing of Communications Division shall be allowed to work in the ports.

Explanation.-For the purpose of this section "port" means the port specified in First Schedule to the Ports Act, 1908 (XV of 1908) or any port which may be notified by the Federal Government for the purpose of this section.

(4) In the case of default under sub-section (1) or sub-section (2), by any Shipping Company, Shipping Agents, Non-vessel Operating Carrier or Cargo Consolidation, the Federal Government shall have the power to cancel the registration, forfeit the security or impose penalty or fine as may be Prescribed."
